

HOUSE No. 179

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Soter

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the regulation of CBD and hemp products.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>1/17/2025</i>

HOUSE No. 179

By Representative Soter of Bellingham, a petition (accompanied by bill, House, No. 179) of Michael J. Soter relative to the regulation of CBD and hemp products. Cannabis Policy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the regulation of CBD and hemp products.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 94G of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting the following definitions:

3 “Cannabidiol (CBD)”, A chemical compound found in the cannabis plant, typically
4 derived from hemp, that is not psychoactive and is commonly used in various products, including
5 but not limited to oils, tinctures, edibles, and topicals.

6 “Hemp”, The Cannabis sativa plant and any part of such plant, whether growing or not,
7 that contains no more than 0.3% THC on a dry weight basis, as defined by state and federal law.

8 “CBD and Hemp Products”, Any product containing CBD or hemp-derived compounds
9 intended for human consumption, including but not limited to edibles, concentrates, tinctures,
10 oils, capsules, and other consumables.

11 "Wholesale Sale of CBD Products", The sale of cannabidiol (CBD) products to licensed
12 cannabis dispensaries within the commonwealth for resale, including products manufactured

outside of the commonwealth, as long as the manufacturer is licensed by the cannabis control commission and complies with all applicable state regulations, including those related to product safety, labeling, and quality control.

SECTION 2. Chapter 94G of the General Laws, as so appearing, is hereby amended by inserting after Section 3 the following section:

Section 3A. Regulation of CBD and Hemp Products by the Cannabis Control Commission

(a) The cannabis control commission shall be responsible for the regulation, licensure, and oversight of all CBD and hemp products within the Commonwealth of Massachusetts, irrespective of whether such products are derived from marijuana or hemp.

(b) No person shall manufacture, distribute, or sell any CBD or hemp product in the Commonwealth unless such product is licensed and registered with the cannabis control Commission in accordance with this chapter.

(c) The cannabis control commission shall establish and enforce rules, regulations, and standards governing CBD and hemp products, including, but not limited to:

(1) Product safety standards, including the testing of CBD and hemp product concentrations, to ensure compliance with all applicable public health and safety standards;

(2) Packaging and labeling requirements to clearly state the CBD content, appropriate serving sizes, safety warnings, and any other necessary consumer information;

(3) Licensing requirements for producers, manufacturers, distributors, and retailers of CBD and hemp products;

(4) Advertising and marketing restrictions to prevent any promotional activities that target or appeal to minors or that would otherwise pose a risk to public health.

(d) The cannabis control commission may issue fines or penalties for non-compliance with the regulations established under this section and may suspend or revoke licenses for egregious violations.

SECTION 3. Section 6 of Chapter 94G of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after subsection (b) the following subsection:

(c) Notwithstanding any general or special law to the contrary, the cannabis control commission shall have the authority to regulate all cannabis-related products, including CBD and hemp products, regardless of their origin, including marijuana or hemp, to ensure that they are produced, distributed, and consumed safely in accordance with state laws.

SECTION 4. Notwithstanding any provision of law to the contrary, licensed CBD manufacturers who are in good standing with the cannabis control commission may sell CBD products wholesale to licensed cannabis dispensaries in the commonwealth, regardless of whether the products are manufactured within the commonwealth or in another state, provided that:

(1) The manufacturer holds a valid license issued by the cannabis control commission and complies with all state regulations regarding the safety, quality, and labeling of products.

(2) All CBD products sold to Massachusetts dispensaries must meet the product safety and quality standards set forth by the cannabis control commission and the department of public health.

(3) All products must be properly labeled in accordance with state regulations, including product ingredients, cannabinoid content, dosage, and health warnings, as applicable.

(4) The dispensary receiving the wholesale product shall ensure that all products are compliant with state regulations and standards prior to sale to consumers.

(5) The cannabis control commission shall have the authority to conduct regular audits and inspections of products sold by licensed manufacturers to ensure continued compliance with all applicable state regulations.

SECTION 5. All CBD and hemp products in circulation at the time of enactment of this legislation that do not comply with the newly established regulatory framework shall have a period of no less than 180 days from the effective date of this Act to come into compliance with the cannabis control commission's licensing and regulatory requirements.

SECTION 6. There shall be established a special legislative commission to determine the efficacy of municipalities overseeing the regulation of CBD and hemp products. The commission's study shall include, but not be limited to, developing a template for municipalities to use in the regulation of CBD and hemp products. The commission shall consist of: the chairs of the joint committee on cannabis policy, who shall serve as co-chairs of the commission; 1 member appointed by the speaker of the house of representatives; 1 member appointed by the president of the senate; 1 member appointed by the minority leader of the house of representatives; 1 member appointed by the minority leader of the senate; the executive director of the cannabis control commission or their designee; the president of the Massachusetts Municipal Association or their designee; and the secretary of administration and finance or their designee.

77 SECTION 7. This Act shall take effect on the first day of the month following 90 days
78 after passage.